

Immigrant Investor Programme

Guidelines



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DEPARTMENT OF JUSTICE AND LAW REFORM

Irish Naturalisation and Immigration Service



Application for Immigrant Investor Programme

Immigrant Investor Programme

Guidelines

1. Introduction

- a) The purpose of the Immigrant Investor Programme is to enable non-EEA nationals and their families who commit to an approved investment in Ireland to acquire a secure residency status in Ireland. The Programme was established by the Irish Government in 2012 to stimulate productive investment in Ireland and to offer residency in Ireland with its associated advantages to dynamic business professionals with a proven record of success.
- b) A non-EEA national may apply for residency status as an individual, or he/she may also apply for residency status for themselves and their spouse/ partner and children under the age of 18. Where family members are granted residency under the Immigrant Investor Programme, as long as the applicant fulfils the criteria for residence status under the Programme, that status will automatically be maintained on their spouse/partner and minor children living in Ireland.
- c) These Guidelines detail the terms for conferring, maintaining and withdrawing residency status in relation to non-EEA nationals and their families legally residing within the State on the basis of a residency permission granted by the Minister for Justice and Equality under the terms of this Immigrant Investor Programme.



Application for Immigrant Investor Programme

2 . Why invest in Ireland?

Ireland is probably the most open economy in the developed world. Being open means Ireland benefits from the boom in world trade; equally it means it must adapt quickly to changing market conditions. Foreign Direct Investment (FDI) is not new to Ireland. The national drive to encourage overseas companies to locate here began back in the middle of the 20th century. Today, success is measured by Ireland's continuing ability to attract cutting-edge Foreign Direct Investment as US, European and Asia-Pacific countries demonstrate their growing confidence in locating their overseas business here. Almost 1,000 companies – including many of the best-known world brands – have placed Ireland at the hub of their European networks because of the combination of winning factors Ireland offers. Overseas business and entrepreneurs from abroad find a welcome home in Ireland.

Foreign Direct Investment is central to Ireland's future prosperity. Ireland's strong pro-business environment results in Ireland being ranked first in the 2009 Global Innovation Survey, for Foreign Direct Investment, and in the Doing Business 2010 Report Ireland is ranked seventh globally as the best place in the world to do business. Ireland's favourable tax regime and financial support systems for research and development underline the Government's determination to continually enhance the country's attractiveness to overseas companies.

Talent

Ireland is a small country that has re-invented itself over the last forty years through the combined force of sheer determination and growing, vibrant ambition. Its young, highly educated workforce has seized the opportunity provided by Foreign Direct Investment and continues to transform Ireland into a dynamic, knowledge based economy for the 21st century.

Track Record

The 2008-2012 Business Environment Ranking of the Economist Intelligence Unit placed Ireland 11th globally out of 82 countries, naming it as one of the most attractive business locations in the world. Furthermore, Forbes 2011 named Ireland as the best country in Europe in which to do business.

Tax Regime

The key features of Ireland's Tax Regime

- Corporate tax rate of 12.5% for active business.
- 25% Research & Development (R&D) Tax Credit which may be refundable over a three year period.



Application for Immigrant Investor Programme

- An Intellectual Property (IP) regime which provides a tax write-off for broadly defined IP acquisitions.

Ireland's Tax Regime also offers:

- An attractive holding company regime, including participation exemption from capital gains tax on disposals of shares in subsidiaries.
- An effective zero tax rate for foreign dividends (12.5% tax rate on qualifying foreign dividends, with flexible onshore pooling of foreign tax credits).
- An EU-approved stable tax regime, with access to extensive treaty network and EU Directives.
- Generous domestic law withholding tax exemptions.

These features all go to make Ireland one of the top global investment locations.

[Note: The Immigrant Investor Programme contains no special provisions regarding taxation. Such matters are governed by the existing tax laws and treaties].



Application for Immigrant Investor Programme

3. What Residency Permission is available to successful applicants under the Immigrant Investor Programme

Successful applicants and their nominated family members will be granted residence in Ireland for two years which will be renewable for a further three years. After 5 years residence participants under the programme will be entitled to apply for long term residence in Ireland. Where required the applicant will be granted a multiple entry visa for Ireland for the same duration. This will allow successful candidates to reside in Ireland and to travel freely to Ireland for the duration of the permission. The conditions of residence and the conditions for renewal are detailed below.

[Note: This Programme does not confer Irish citizenship on successful candidates. Persons granted residence under the Immigrant Investor Programme may apply for Irish citizenship under the terms of the Irish Nationality and Citizenship Acts and will be assessed according to the criteria provided for in that legislation.]

What investments will qualify for residency under the Immigrant Investor Programme?

Non-EEA nationals who are interested in acquiring residence in Ireland through the Immigrant Investor Programme can do so under any of the following eligible investment options.

1) Immigrant Investor Bonds

- A minimum investment of €2,000,000 in the immigrant investor bond issued by Ireland acting through the National Treasury Management Agency. The immigrant investor bond has a term of 5 years and an annual interest rate of 1% per annum. The prospectus for the immigration investor bond is available upon request from the Irish Naturalisation and Immigration Service

Please note that any bonds referred to in these guidelines have not been, and will not be, registered under the U.S. Securities Act of 1933, as amended (the “Securities Act”), and, subject to certain exceptions, may not be offered or sold within the United States (as those terms are defined in Regulation S under the Securities Act).

or

2) Enterprise Investment

- A minimum investment of €1,000,000 in a single Irish enterprise or spread over a number of enterprises for a minimum of 3 years. The enterprise may be a start-up established by the investor or an existing business registered in Ireland. The enterprise must be registered and headquartered in Ireland. The investment must support the creation or maintenance of employment¹.

¹ The proposed investment must be at least employment neutral. A purely speculative investment aimed at increasing profits through reduction in staff or moving jobs offshore would not be acceptable for the purposes of the Programme.



Application for Immigrant Investor Programme

- The investment must be made in the name of the individual seeking residence under the Programme².
- In certain circumstances investment through a venture capital (VC) fund may be considered. However it must be clearly demonstrated that the net effect of the investment is the same as if it were invested directly in Irish businesses³.
- A substantial investment in a company listed on the Irish Stock Exchange may be considered in exceptional circumstances⁴ where that investment represents a significant contribution to Ireland's national economic interests. A simple purchase of shares on the open market would not meet the investment requirements of this programme. The investment must be held for a minimum of 3 years

or

3) Mixed Investments

- In certain cases an investment in property will be considered eligible for the programme. In order for the property investment to be the basis for qualification for residence the property in question must either;
 - (a) Be a residential property in which the applicant and their family intend to reside in Ireland (residential properties purchased for rental income will not be eligible). In such cases a minimum investment of €1,000,000 will apply and this investment must be diversified between residential property and immigrant investor. The investment must be diversified between each eligible investment category but not more than 50% can be in property⁵.
 - or
 - (b) In certain cases, a property investment of a minimum value of €1,000,000 in which the investor can demonstrate a clear economic or social benefit for Ireland or where the property investment is a critical part of an overall business development or enterprise plan.

4) Endowment

- A minimum endowment of €500,000 in a project of public benefit in the arts, sports, health, cultural or educational field. The endowment should be regarded as a philanthropic contribution with a clear public benefit. Investors will receive no

² An investment by a corporation, even where owned 100% by the applicant will not be acceptable.

³ The two central elements of this are that the investor puts at least €1m to the benefit of Irish companies and that such companies receive investment of at least €1m that can be attributed to the investor. In otherwords the investors share of new VC funds invested in Ireland must be not less than €1m. Example: VC fund invests €50m in Ireland. Overall Fund is €200m. To satisfy the requirement for contributing €1m to Irish business the investor would have to have €4m investment in the fund.

⁴ Ordinarily a purely speculative investment in publicly traded shares would not qualify. However there may be instances where an investor takes an equity stake in a publicly traded company and if the investment achieves the general objectives of the programme it may be acceptable.

⁵ It will not be sufficient to simply purchase a residential property in Ireland and a further investment of at least the same value of the real estate investment will be required.



Application for Immigrant Investor Programme

financial return or recoupment of the principal. The endowment must not displace or supplement current or capital expenditure as voted by the Oireachtas⁶.

4. Application and Evaluation Process

The application process has two stages

Stage one – application for investment and immigration approval

In the application stage candidates will submit their application forms and all supporting documentation as well as the required details of their investment proposals for approval by the Evaluation Committee. The Evaluation Committee will consider the proposal and may seek further information from the candidate if required. It should be noted that the Evaluation Committee will only communicate with the candidate and their nominated legal or financial representative.

The Evaluation Committee will make recommendations to the Minister as to whether or not the person should be accepted under the programme.

N.B. It should be noted that merely meeting the financial thresholds set out above does not guarantee approval. The Committee must be satisfied that the proposal is in the public interest.

Stage two – issue of residence permission

Applicants who are successful and whose investment proposals are approved will be issued with the residence permissions when the following conditions have been met

1. The proposed investment has been pursued and evidence of the transfer of funds in to the investment has been supplied to INIS.
2. The applicant, and if relevant their spouse/partner, has submitted the required affidavit attesting to their good character and lack of criminal convictions. Applicant will be facilitated with an Irish visa, if required, to pursue this affidavit.

⁶ It is important that the endowment is visible to the public and beneficial to the wider community.



Application for Immigrant Investor Programme

5. Documentation and Evidence required to support the application

a) Documentation required to support investment proposal

i) Immigrant investor bond

It will be sufficient for the applicant to show that they have the necessary funds for the immigrant investor bond as required by the Evidence of Funds condition detailed below.

Please note that Investors will be required to nominate a bank account with a financial institution regulated by the Central Bank of Ireland for the redemption of the bond and the payment of interest.

ii) Enterprise Investment

- If the applicant is investing in an existing Irish business or is relocating a business to Ireland, the most recent audited accounts for that business should be submitted in support of the application.
- For investments in existing businesses, relocating business and new business proposals the applicant should submit a comprehensive business plan which clearly identifies the financial investment being made in support of the application for residency under this programme. The business plan should indicate how the funds will help create or maintain employment in the business. Business plans should be completed in the template provided in Appendix I to the Application Form.

iii) Property investment

Where applicants wish to include a property component in their investment application it will be necessary to provide evidence of the property investment in the form of an original document from a legal adviser permitted to practise in Ireland, confirming that the applicant has had an offer for purchase accepted on the property in question. The letter must be an original document and not a copy and must show;

- the name of the legal adviser who is confirming the details
- the registration or authority of the legal adviser to practise legally in Ireland
- the agreed sale price of the property in question
- confirmation that the property in question is 'sale agreed'⁷
- confirmation that the property in question will be purchased from the investors own resources and will not be subject to a mortgage, lien or any other credit arrangement.

⁷ NB 'sale agreed' means that the purchasers offer for a property has been accepted by the vendor. There is no obligation on any party to proceed with an exchange of contracts on the property.



Application for Immigrant Investor Programme

Where the purchase of the property is part of an overall business proposal the investor should submit a detailed business plan for the property investment. Business plans should be completed in the template provided in Appendix I to the Application Form

iv) Endowment

Applicants who wish to pursue the endowment option should submit the details of their endowment using the business plan template available from the INS webpage.

b) All applicants will be required to submit the following evidence in support of their application

Evidence of funds

The applicant must provide evidence of the funds that are to be used for the proposed investment, the provenance⁸ of those funds and the ability of the applicant to transfer those funds to Ireland. This should be done by -

A letter from a financial institution regulated by the Central Bank of Ireland,

or

If the funds are not held in a financial institution regulated by the Central Bank of Ireland, personal bank statements from a bank that is regulated by the home regulator (official regulatory body for the country in which the financial institution operates and the funds are located), showing the amount of funding available in the name of the applicant. The applicant should provide bank statements, covering the three full consecutive months before the date of application. The most recent statement must be no more than one calendar month old at the date of application. All bank statements provided must be original documents and not copies, be on the official bank stationary and each must show the full amount of the available funds.

or

A Letter from a bank that is regulated by the domestic regulator (official regulatory body for the country in which the financial institution operates and the funds are located). If the applicant cannot provide bank statements, INIS will require a letter from his/her bank, stating that the account has held the required amount of money on the day the letter was produced and for the three full consecutive months immediately before the date of the letter. The letter must be dated no more than one calendar month before the date of application. The letter must be an original letter and not a copy; on the institution's official headed paper; and it must have been issued by an authorised official of that institution. The letter must confirm the following:

- the name of the applicant, and that the money is available in their name/s;
- the bank is regulated by the home regulator;

⁸ All funds must be acquired and held legally and must be fully at the free disposal of the applicant.



Application for Immigrant Investor Programme

- the dates of the period covered. This must include both the day the letter was produced and three full consecutive months immediately before the date of the letter; and
- the balance of the account to cover the amount claimed as a credit balance on the date of the letter and the three full consecutive months before the date of the letter.
- If the letter does not confirm a minimum sufficient credit balance for the full period required, the applicant must also provide further evidence of the source of the money, from the list below.

Source of funds

Whether the money is held in a financial institution regulated by the Central Bank of Ireland or overseas at the time of application, the applicant must supply every item of evidence that is necessary to establish the source of his/her money. We will contact the source of these documents to confirm the information as necessary.

We will consider the following sources of funds,

- i) business and investment activities
- ii) deeds of sale
- iii) inheritance
- iv) divorce settlement

The above sources of funds will only be considered where the following evidence is provided;

i) Business and investment activities

If the funds are being sourced from the applicant's business and investment activities, the applicant should provide financial accounts together with a verification letter from a registered legal adviser who is permitted to practise in the country where the applicant's business activities are operating. This letter must confirm that the applicant can lawfully extract the money from the business.

The required financial accounts must be a profit and loss account or income and expenditure account if the organisation is not trading for profit. The financial accounts should be prepared and signed off in accordance with legal requirements and should clearly show the amount of funding available for investment.

The verification letter, in the form of an original document from a legal adviser permitted to practise in the country where the applicant's business activities are operating, must confirm that the applicant can lawfully withdraw the funds from the business. The letter must be an original document and not a copy and must show

- the name of the legal adviser who is confirming the details
- the registration or authority of the legal adviser to practise legally in the country in which the business is operating
- the date on which the details are confirmed



Application for Immigrant Investor Programme

- confirm that the applicant can lawfully withdraw the funds from the business in question.

ii) Deeds of Sale

If the funds are being sourced from the proceeds of a sale of assets the applicant should submit original documents in the form of the deeds of sale of assets accompanied by a verification letter from a registered legal adviser who is permitted to practise in the country where the sale was conducted.

INIS will require the deeds of sale of assets such as business or property if the applicant has generated these funds from this source for the purposes of this application, together with confirmation from a registered legal adviser, who is permitted to practise in the country where the sale was conducted, that the sale was genuine and that the funds realised are available to the applicant. All deeds of sale should meet the relevant legal requirements of the country in which the sale was conducted. As a minimum requirement the deed of sale document must show -

- the name of the applicant,
- the monetary value of the sale,
- the date of the sale.

If a sale is required to be registered on an official public register in the country of sale, a copy of the relevant registration should be submitted.

The verification letter in the form of an original document from a legal adviser, who is permitted to practise in the country where the sale was conducted, must clearly show the following –

- the name of the legal adviser confirming the details,
- the registration or authority of the legal adviser to practise legally in the country in which the sale was made,
- the date of the sale,
- the date of production of the letter confirming the sale,
- the details of what was sold and the amount of money received from the sale,
- the name of the person receiving the money from the sale,
- the date that the money was transferred,
- that the sale was valid according to the laws of the country in which it was conducted.

iii) Inheritance

If the applicant has been the beneficiary of an inheritance which has enabled his or her application, then a notarised copy of the will which conferred this benefit on the applicant should be provided together with a verification letter from a registered legal adviser permitted to practise in the country where the will was made confirming the validity of the will. If the applicant has received assets, rather than money, then the applicant may not use estimates of the value of the assets as evidence of funds for investment.



Application for Immigrant Investor Programme

The will should contain the following information –

- the date of the will,
- the applicant should be identified as a beneficiary of the will,
- the amount of money that the applicant has inherited,
- the names of any executors, plus any codicils (additions) to the will that impinge on the amount of money that was received,

The verification letter should be an original document from a registered legal adviser, permitted to practise in the country where the will was made, must clearly demonstrate –

- the name of the legal adviser confirming the details,
- the registration or authority of the legal adviser to practise legally in the country in which the will was made,
- the date of the document produced by the legal adviser confirming the will,
- the date that the applicant received the money as a result of the settlement of the will (assets or possessions will not be accepted for qualifying investments),
- the names of the person making the will and the beneficiaries,
- confirmation of the amount of money received by the applicant,
- that the will is signed and valid,
- that the will is valid according to the laws of the country in which it was made.

iv) Divorce Settlement

If the applicant has obtained the required funding as a result of a divorce settlement, a notarised copy of a financial agreement following a divorce should be provided together with a letter from a registered legal adviser permitted to practise in the country where the divorce was decreed. Where the applicant has received possessions or assets, rather than money, estimates of the value of the items will not be accepted as evidence of funds available for investment.

The verification letter in the form of an original document from a registered legal adviser permitted to practise in the country where the divorce was decreed, must clearly state the following -

- the name of the legal adviser confirming the details the registration or authority of the legal adviser to practise legally in the country in which the divorce was decreed,
- the date of the document produced by the legal adviser confirming the divorce settlement,
- the date that the applicant received the money as a result of the settlement,
- the names of the persons who are divorced,
- confirmation of the amount of money received by the applicant,
- confirmation that the divorce settlement is complete and valid.



Application for Immigrant Investor Programme

If the applicant has received the required funding from a source not listed above, they must provide original documentation as evidence of the source of the funding, together with independent supporting evidence.

▪ Evidence that the money can be transferred

All of the funds required to meet the conditions of the Immigrant Investor Programme must be capable of being transferred to Ireland and convertible to euros. Many jurisdictions have controls over the transfer of currency and it will be necessary for the applicant to prove that the funding can be transferred to Ireland if the application is successful.

Applicants should provide a letter from their bank or financial institution as evidence that the funds can be transferred into Ireland. This must be an original letter, on the official letter-headed paper of the bank or financial institution. It must have been issued by an authorised official of that institution and must confirm the following details –

- the name of the beneficial owner of the funds, which should be the applicant,
- the date of the letter,
- the amount of money to be transferred,
- that the money can be transferred to Ireland if the application is successful,
- that the institution will confirm the content of the letter to the Irish Naturalisation and Immigration Service upon request.

The bank or financial institution must be regulated by the official regulatory body for the country in which the institution operates and the funds are located.



Application for Immigrant Investor Programme

Evidence of Character

All applicants must submit their application with a statement of character from the police authorities of each country in which you have resided for more than six months during the 10 year period prior to your making an application. Applicants who are in a position to supply screening reports from reputable international risk management companies are invited to do so.

Where an applicant is successful in having their investment proposal approved they will be required to arrange for the submission of an affidavit attesting to their good character and affirming that they have no criminal convictions. This affidavit must be produced by a legal practitioner who is registered to practice law in Ireland. Residence permission will not be issued by INIS until this affidavit has been submitted. A false declaration will invalidate any permission granted under the programme. A similar affidavit will be required from all family members of 16 years of age or more who are availing of residence under this scheme. INIS will assist with the issue of visas, where required, for this purpose.



Application for Immigrant Investor Programme

Residency Permission Available under the Immigrant Investor Programme

- a) Applicants for the Immigrant Investor Programme who have their investment proposals approved shall be invited to apply for residency permission under the Programme.
- b) Once the applicants have provided verifiable evidence that they have transferred the funds identified in their application for investment approval to their nominated investment proposal, they will be granted the following residency permission in Ireland.
 - Permission to reside and work in Ireland for **two years**. Where a person is a visa required national they will be given a multiple entry visa for the period of two years. This is to facilitate business related travel.
 - During this period beneficiaries must have private medical insurance and must not have recourse to public funds.
 - Spouses, Partners and minor children shall be allowed to accompany successful applicants. It is important that details of all family members who the applicant intends to benefit from his/her application are submitted as part of the application form.

Renewal of Residency Permission

Permission will be renewed thereafter subject to;

- The investment remaining in place thereafter for the designated period
- An assessment by the Evaluation Committee of the success or viability of the investment.
- The Candidates maintaining their good character.
- The candidates maintaining their private medical insurance and not having recourse to publicly funded welfare programmes.

On renewal, residency permission will be granted for **3 further years**.

Thereafter permission may be renewed in **5 year instalments**.

Naturalisation

The Immigrant Investor Programme does not provide for preferential access to citizenship for successful applicants. Successful applicants are free to apply for citizenship in the normal manner under the provisions of the Irish Nationality and Citizenship Acts 1957-2004



Application for Immigrant Investor Programme

Eligible Family Members

Residency status, on similar terms, to the principal applicant is also available for spouses/partners and minor children (i.e. children under 18 years of age) for whom the principal applicant and/or their spouse or partner has legal guardianship.

Consideration of family relationships: Where the person applying for residence status under the Immigrant Investor Programme for themselves and their families the validity of the family relationships will be considered.

Spouses: Applicants should provide evidence that their marriage or civil partnership is legal.

Partners: Applicants should provide evidence that they have been cohabitating with their partner in a common law/de facto relationship for the previous two years.

Children: The minor children of the applicant shall qualify for residency status provided that the applicant qualifies for residency status and provided that;

- They are **legally** in the custody/guardianship of the applicant
- They are unmarried and are not in a de facto/common law relationship

In respect of each child, the applicant must supply birth certificates detailing parentage or legal documentation verifying the applicant's custody/guardianship.



Application for Immigrant Investor Programme

Withdrawal or loss of status

Residency status under the Immigrant Investor Programme shall be withdrawn in the following circumstances

- i) If the acquisition of the status was fraudulent,
- ii) In the event of the holder being the subject of a deportation order,
- iii) In the event of the holder being convicted of a criminal offence.
- iv) If the applicant fails to meet the conditions of the scheme as regards duration of the investment

Rejection of Applications

The Decision of the Minister on an application is final and a rejection of an application for residence under the Immigrant Investor Programme shall not be subject to a review or appeal. That does not however prevent the person concerned from making a new application at a later date.

Where an application is rejected, the Irish Naturalisation and Immigration Service will communicate the reasons for that rejection in writing to the applicant.



Application for Immigrant Investor Programme

Applications

- a) The application for Residence under the Immigrant Investor Programme must be made to the 'Investment and Entrepreneur Unit', Irish Naturalisation and Immigration Service, 13-14 Burgh Quay, Dublin 2.
- b) A non-refundable Application Fee of €750 must be submitted with all applications.
- c) The application shall be made on the appropriate application form and provide all the information requested. It shall be accompanied by the travel document of the applicant (and any accompanying family members) and any necessary supporting documentation.

